Formulation of New Provinces in Pakistan: Challenges and Prospects

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Abstract. Pakistan's federal map has been redrawn more times than its constitutions, and it is being redrawn again in the public imagination. Between 2024 and 2026 a succession of events - the 2023 digital census, the Twenty-Sixth Amendment's local-government provisions, a unanimous Khyber Pakhtunkhwa assembly resolution for a Hazara province (December 2025), and persistent reporting of a '28th Amendment' package that would split Punjab, Sindh, Khyber Pakhtunkhwa and Balochistan into smaller units - has put the creation of new provinces back on the national agenda. This paper examines the formulation of new provinces in Pakistan as a problem of institutional design. It reconstructs the historical trajectory from the One Unit experiment (1955-1970) to the post-18th Amendment settlement; catalogues the principal provincial demands and their social bases; and analyses the constitutional route, which runs through Article 239 (including the two-thirds consent requirement of the affected provincial assembly) rather than through executive proclamation. The paper argues that the binding constraints on new provinces are not legal but political-economic: the arithmetic of supermajorities; the zero-sum character of National Finance Commission transfers locked by the Article 160(3A) non-regression floor; the equality-of-provinces doctrine in the Senate; water and resource settlements (the 1991 Indus accord, gas royalties under Article 158); administrative and judicial capacity; and the risk that border-making hardens ethnic competition, as comparative evidence from Indonesia, Ethiopia, Nigeria, Nepal and India suggests. The prospects, however, are real: sub-national re-scaling could close the 'deprivation divide' documented by the UNDP, shorten the distance between citizens and the state, and institutionalize conflict accommodation - provided sequencing runs through local government and divisional devolution first, provided viability and fiscal criteria are written before the first new province is created, and provided the change is carried by a cross-party consensus of the kind the 18th Amendment embodied rather than by the bare parliamentary arithmetic the 26th and 27th Amendments exhibited.

Keywords: *federalism; new provinces; provincial autonomy; NFC Award; Article 239; South Punjab; Hazara; Karachi; Kalat; ethnic conflict; constitutional amendment; Pakistan*

1. Introduction

Few questions in Pakistani politics are as old as the country itself and as unsettled as the size and number of its provinces. Pakistan began as a federation of five units (three provinces and two groups of princely states), collapsed into a single 'One Unit' in West Pakistan in 1955, was re-regionalized into four provinces in 1970, and has lived under that four-province settlement since the 1973 Constitution [1][4]. Each of those restructurings was, in its way, a response to the same problem: a state whose central institutions were too weak to deliver legitimacy but too strong to share power. The problem has not gone away. The 2023 digital census recorded 241.49 million people in the four provinces and the Islamabad Capital Territory - Punjab alone accounting for 127.7 million, more than twice the combined population of Khyber Pakhtunkhwa and Balochistan - and population is the very criterion by which seats, funds and bureaucratic attention are allocated [2].

By the mid-2020s, provincial-statehood demands had become a recurring feature of legislative business and coalition bargaining. The Pakistan Tehreek-e-Insaf pledged a South Punjab province in its 2018 manifesto, tabled amendment bills in 2019, and circulated a federal cabinet summary in March 2022 drafting the new province's assembly, high court and Senate representation [39][46]. In October 2024 the Twenty-Sixth Amendment rewrote Article 140A to require provinces to establish empowered local governments with elections conducted by the Election Commission of Pakistan (ECP) [33][51]. In December 2025 the Khyber Pakhtunkhwa assembly unanimously passed a resolution urging the federal government to initiate the Article 239 process for a Hazara province [41]. And throughout 2025-2026, with a new National Finance Commission at work and a decennial census on the horizon, newspapers and politicians have debated a possible '28th Amendment' restructuring package variously reported to divide Punjab into North, Central, South, Potohar and Bahawalpur units; Sindh into Karachi, Hyderabad, Mirpurkhas, Sukkur and Larkana; Khyber Pakhtunkhwa into Peshawar, Hazara, Malakand and Dera Ismail Khan; and Balochistan into Quetta, Makran, Zhob and Kalat, with Karachi and Gwadar in some versions brought under federal control [40]. As this paper went to draft (October 2026), no such bill had been tabled, and the federal law minister had publicly characterized the talk as consultations rather than legislation [40].

The gap between talk and legislation is itself the subject of this paper. If creating new provinces is a plausible answer to Pakistan's governance and regional-inequality problems, why does the process keep stalling at the threshold of the

Constitution? And if it is not, why does the demand recur in every electoral cycle and in every coalition agreement from Multan to Abbottabad? This paper answers by treating province creation as a question of **institutional design under fiscal scarcity and ethnic competition**. Three propositions organize the analysis. *First*, the constitutional route exists and is not doctrinally blocked - Article 239 supplies a deliberately demanding procedure, whose difficulty is a feature: any new province must be wanted simultaneously by the federation and by the mother province. *Second*, the decisive obstacles are political-economic rather than legal: supermajority arithmetic in a fragmented party system; a fiscal transfer system that is strictly zero-sum; Senate parity that makes small provinces structural veto-players; unresolved water and resource settlements; and the sheer cost of duplicating provincial state apparatuses at a moment of IMF-monitored austerity. *Third*, the prospects are genuine but conditional: the governance and conflict-accommodation gains claimed for new provinces are better achieved - and only made safe - through a sequenced ladder of devolution (local government first, divisional autonomy second, provincial statehood only for units that pass pre-committed viability criteria), under constitutional rules fixed before the particular winners and losers are known.

The paper proceeds as follows. Section 2 reconstructs the historical logic of Pakistan's provincial settlements. Section 3 catalogues the contemporary demands and their social bases. Section 4 sets out the constitutional and legal framework. Section 5 analyses the challenges - political, fiscal, hydrological, ethnic-administrative and legitimacy-related - drawing on census, budget and NFC data. Section 5 also presents a comparative assessment: how re-scaling worked, or did not work, in India, Indonesia, Ethiopia, Nigeria, Nepal and Kenya. Section 6 develops the prospects. Section 7 derives design principles and policy options, and Section 8 concludes. The analysis is doctrinal and comparative, relying on primary legal instruments, official statistics and quality secondary literature; all financial data are in rupees for FY2024-25 (approx. US$1 = Rs278), and events are described as of mid-October 2026. Because several claims in the current debate rest on reported rather than tabled proposals, the evidentiary status of each is flagged in place.

2. The Provincial Question: Historical Foundations

2.1 The colonial inheritance and the unitary reflex (1947-1955)

Pakistan's founders inherited the Government of India Act 1935 as a working federal template - a quasi-federal instrument designed, as the Objectives Resolution debates showed, more for control than for compromise [4]. The 1947 settlement was doubly fragile: the provinces (Punjab, Sindh, North-West Frontier Province, Balochistan, and East Bengal) carried living memories of provincial elections and Muslim League governments, while the princely states (Kalat, Bahawalpur, Khairpur, and others) carried their own sovereignty claims. The traumatic accession of Kalat (March 1948, followed by the imprisonment of the Khan and a brief armed rising) embedded in Baloch political memory the association between 'federation' and 'annexation' [7][8]. The Bengali language movement (1948-1952) likewise fixed the equation of centralization with Urdu-nationalism in the East. When Governor-General Ghulam Muhammad proclaimed One Unit in October 1955 - amalgamating all of West Pakistan's provinces, states and tribal agencies into a single unit nominally equal to East Pakistan - the device was parity-by-aggregation: dissolve the units rather than equalize them [4][6]. Its administrative logic was noted at the time. The UN adviser Robert Chester's reform report (1964) declared One Unit unworkably large and proposed re-dividing the country into a dozen or so smaller provinces, among them **a Hazara province and a South Punjab province** - the first official-adjacent articulation of both demands that dominate today's debate [5].

2.2 Re-regionalization, secession, and the 1973 bargain (1958-1973)

Ayub's martial law preserved One Unit and its Basic Democracies apparatus; the princely constitutions were extinguished along the way (Bahawalpur's in 1966). One Unit was dissolved by the Legal Framework Order of July 1970, reconstituting Punjab, Sindh, NWFP and Balochistan - while, significantly for today's discussion, the 1970 settlement *promised and never delivered* the political integration or provincial status of the tribal agencies and the northern areas, leaving grey zones that the 2018 FATA merger and the Gilgit-Baltistan governance orders are still working out [4][21]. The secession of East Pakistan in 1971 was, among many other things, a defeat for the unitary state model; the 1973 Constitution negotiated by Zulfikar Ali Bhutto's government was explicitly a counter-design: four named provinces in Article 1; a Senate (Article 59) giving every province an *equal* delegation regardless of population; the Council of Common Interests (Articles 153-154) as the peak inter-governmental body; a National Finance Commission (Article 160) for revenue sharing; provincial ownership of minerals and a royalty on natural gas and oil extracted in a province (Article 158); and, after years of agitation, the recognition that Sindhi, Pashto, Balochi and Punjabi would not be constitutionally privileged over Urdu but neither suppressed [1][4][6]. The 1973 bargain was genuine federalism with an iron clause: the center retained emergency powers (Article 112), the civil services, and - decisive for provincial demands ever since - the planning and development apparatus that determined where money actually went.

2.3 Centralization's second round: Zia, Musharraf, and devolution-by-decree (1977-2008)

Zia's amendments re-centered the federation (the Eighth Amendment's dismissal powers, the 1984 frontier orders touching FATA and the northern areas) even while Islamization co-opted some symbolic demands [4]. Pervez Musharraf's Devolution Plan (2000-2001) remains the most instructive precedent for the current debate: it abolished the divisions as intermediaries, created directly elected district and tehsil governments with a strong nazim executive, and was celebrated as the most radical decentralization in Pakistani history. It was also what critics called 'devolution of patronage rather than power': no meaningful fiscal autonomy, bureaucratic line control retained by deputy commissioners, no provincial ownership - and it collapsed as quickly as it had been launched, revoked and rewritten by the 2008 restored civilian order [28][29][22]. The lesson Pakistan has internalized (and, in the 2026 structuring debate, partly forgotten) is that **a new tier of government created by decree without a fiscal base reproduces dependency at a new altitude**.

2.4 The autonomy settlement and its extensions (2008-2018)

The 18th Amendment (April 2010) rewrote the provincial bargain more ambitiously than the framers of 1973 dared: it abolished the Concurrent List, devolved ~17 ministries (including education and health), constitutionalized NFC floors (Article 160(3A): no province's share may fall below its previous level), provincialized water (Article 172), regulated gubernatorial rule (Article 112), created the Constitutional Appellate Court, and made local-government devolution a constitutional command (Article 140A) [36][1]. It was accompanied by the landmark Seventh NFC Award (2009), which raised the provincial share of the divisible pool to 57.5 percent - later with special allocations, roughly 59 percent flowed to provinces - and tilted the horizontal formula away from pure population to reward poverty, revenue effort and sparsity [30][47]. Scholars called the package a move from 'the most centralized federation to one of the most decentralized'; what it also did was *change the currency of provincial conflict*. Once provinces control school curricula, police, health and a majority of the tax basket, a new province is not merely an administrative boundary - it is a package of rents and regulatory powers worth fighting over, which is precisely why the demand re-emerged with renewed political value after 2010 [10][11]. The Twenty-Fifth Amendment (May 2018) merged FATA into Khyber Pakhtunkhwa - the first successful territorial integration in decades, pursued through a Supreme Court-mandated committee (the Justice Qazi Faez Isa commission process and the FATA Reforms Committee chaired by IQ Khan), a five-year Rs1,250 billion federal action plan for the merged districts, and an extension of the police and courts regime [35][31][21]. Its instructive features for province-creation were the *phasing* (full integration of the merged districts was scheduled over 15 years), the *ring-fenced transitional money* (outside provincial NFC arithmetic, from the federal PSDP), and the *precedent of treating a sub-national territorial question as a national project requiring consensus in both houses plus the host assembly*.

2.5 The new-province cycle of 2018-2026

Against that backdrop the recent cycle is legible. The PTI's 2018 pledge of South Punjab became an assembly resolution in Punjab, a private member's bill (2019), and in March 2022 a federal cabinet summary with a drafted amendment bill: South Punjab comprising the Multan, Bahawalpur and Dera Ghazi Khan divisions; 56 National Assembly seats; a 119-seat provincial assembly; a reduction of the Punjab assembly from 371 to 252; a Senate enlargement from 96 to 119 (seven seats to South Punjab in staggered retirement classes); a South Punjab High Court seated at Multan with a bench at Bahawalpur; an additional ECP member; and a bump for minority reserved seats from four to five [39][46]. The bill died with the government in April 2022. Its successor, the PML-N-led coalition of 2024, negotiated away the province question in the Punjab coalition deal with PML-Q by substituting a 'South Punjab package' of development spending and an additional secretariat at Multan, with a senior minister serving as the prime minister's coordinator for South Punjab; a Senate standing committee in January 2025 split over the revived private member's bill, JUI-F members warning that parity in the upper house would be weakened [38][45]. Meanwhile Hazara politics took an unusual turn: after a decade of street mobilization (the 2014 March for Hazara rights, four martyrs on 12 April 2014; Baba Haider Zaman's death in 2018) and two KP assembly resolutions (2014, 2022), the KP assembly - in power shared between parties with opposing histories on the demand - unanimously resolved in December 2025 that the federal government should complete the constitutional process for a Hazara province [41]. Sindh's demand set fragmented: MQM-P traded its support for the 2024 federal and Sindh coalitions for promises of metropolitan status for Karachi under (then proposed) Article 140-B/140-C provisions, while interior Sindh's Seraiki- and Sindhi-nationalist formations continued to press for a separate province (Mirpurkhas/Sukkur) with control of Thar coal royalties [32][51]. In Balochistan, the provincial question is nested inside an armed insurgency and a missing-persons protest cycle (the Voice for Baloch Missing Persons campaign into 2024-25), which both sharpens the case for re-scaling and makes it harder to hold anything as calm as a border referendum; the 'Pashtun Pakhtunkhwa' demand in the sasani (non-Baloch) north-east and the revived Kalat and Makran proposals each compete with, rather than complement, one another [8][20][43]. And in August-October 2026 the ECP was publicly pressing Punjab, Sindh, Khyber Pakhtunkhwa and the capital on local-government delimitation and schedules under Article 140A - with the commission threatening hearings and the KP assembly amending its own local government thresholds mid-process [52][53][54].

Table 1 compresses this trajectory. Its central pattern: Pakistan's provincial boundaries have moved only at moments of *regime reconstruction* - the end of One Unit on the eve of the 1970 election, the post-1971 constitution, the post-2008 transition, the 2018 FATA merger - and never at a moment of routine politics. That pattern explains both the recurring talk of a '28th Amendment' as the vehicle for new provinces, and the consistent failure of every bill so far to survive the ordinary arithmetic it requires.

Table 1. Chronology of Pakistan's provincial question (1947-2026)

Period	Development	Significance for province formulation
1947-55	Quasi-federal dominion; princely accessions (Kalat 1948, contested); Objectives Resolution 1949	Centralizing reflex; integration-by-force precedents
1955-70	One Unit; Chester report 1964 proposes smaller provinces incl. Hazara & South Punjab; princely states dissolved (Bahawalpur 1966)	First systematic province-design debate; ignored
1970-73	LFO 1970 reconstitutes four provinces; 1971 secession; 1973 Constitution: Senate parity, CCI, NFC, royalty clause	Founding bargain: four units, equal voice, formula money
1977-99	Zia recentralization; Nawaz era's 7th NFC attempt & 12th Amendments	Autonomy promises used as coalition currency
2000-08	Musharraf Devolution Plan (district govs, elected nazims); reversed post-2008	Decree-fed decentralization dies when the decree does
2009-10	7th NFC Award (57.5% provincial share); 18th Amendment devolution; Art. 140A local-government duty	Autonomy 2.0; transfers, courts, police to provinces
2013-18	18th-Amendment implementation litigation; Hazara movement (2014 march; KP resolution); PTI South Punjab pledge	Sub-provincial demands re-enter mainstream
2018	25th Amendment: FATA merges into KP; Rs1,250 bn 5-yr action plan; phased integration	Only modern *completed* territorial project; template
2019-22	South Punjab bills & March 2022 cabinet summary (assembly 119; Senate 96->119; high court bench); Rs581 bn package; Multan additional secretariat	Complete design exists; dies with governments
2023	Digital census (241.49m provinces+ICT; 247.54m national); CCI approval; delimitation on 2023 base	Map arithmetic becomes auditable; 2027 census next
2024	26th Amendment (Art. 140A: ECP-run LG elections); PML-N-PML-Q Punjab govt with South Punjab 'package'; 27th Amendment talks on NFC parameters	LG-enforcement moment; package-vs-province trade explicit

Period	Development	Significance for province formulation
2025	Senate panel split on South Punjab (Jan); 27th Amendment passed (Nov: CDF, Const. Court, ouster clause); 11th NFC convened (Aug) & first session (Dec 4) incl. KP 14.62->19.42% demand; KP assembly *unanimous* Hazara resolution (Dec)	Amendment capacity demonstrated without consensus; small-province anxieties rise
2026	ECP delimitation & directives for LG polls (Mar-Jul-Oct); '28th Amendment' restructuring reports incl. multi-province splits and federalized Karachi/Gwadar; minister 'no indications', consultations 'ongoing' (May)	Province question re-nationalized, still at rumor stage

Compiled from the legislative and reported record; sources as cited in the references.

3. The Demands: Who Wants What Province, on What Grounds

Table 2 catalogues the principal new-province proposals live in Pakistani politics as of 2026, with their territorial bases, demographic sizes and political vehicles. The demands differ in every important respect except one: all are argued in the vocabulary of *grievance distance* - the claim that the parent province's capital is too far, its elites too extractive, and its budget too politically allocated - and all would, if realized, redraw not only maps but the distribution of Senate votes, NFC rupees, National Assembly seats, civil-service cadres and, in three cases, canals, gas fields and a port. That double character - recognition claim *and* resource claim - is what makes each demand simultaneously attractive and radioactive.

Table 2. Principal new-province proposals and their bases (status as of October 2026)

Proposed unit	Territorial base	Approx. population (2023 census)	Principal grounds and vehicles	Status
South Punjab (Saraikistan)	Multan, Bahawalpur & DG Khan divisions (12 districts; ~83,450 km2)	~42-43 million	Deprivation divide (education, health, MDPI); tail-end canal inequity; Seraiki language recognition since the 1960s; PTI pledge 2018; PML-Q coalition pressure; 2019/2022 amendment bills; Senate bill 2024	Stalled; 'package + additional secretariat' substituted by federal government
Hazara	Hazara division of KP (Abbottabad, Haripur, Mansehra, Battagram, Torghar, Kohistans, Kolai-Palas)	6.19 million	Under-representation post-1970 merger of Malakand into NWFP; earthquake-reconstruction grievance (2005); provincial party of same name; KP assembly resolutions 2014, 2022, and unanimous December 2025 resolution urging Article 239 process	Hostile-free in KP politics; no federal bill
Karachi province	Karachi division	17 million+ (~20-25% of GDP; bulk of federal customs receipts)	MQM ethno-territorial demand since 1989-92; MQM-P's 2024 metropolitan-governance bargain with PML-N; urban governance failure thesis; 2026 reports even mention federation-administered Karachi	No bill; metropolitan option preferred by federation
Interior Sindh (Seraikistan / new province)	Sukkur, Larkana & Mirpurkhas divisions	~18 million (est.)	Tail-end water; Thar coal & Irrigation royalties; Sindhi-nationalist (Jeay Sindh) and Seraiki variants; 'Haq Dastak' assemblies 2024-25	Marginalized; folded into wider Sindh splits in 2026 restructuring reports
Pashtun belt of Balochistan ('Pakhtun Pakhtunkhwa')	Pishin, Zhob, Loralai, Sibi, Musakhel, Duki & Barkhan belts	~4 million (est.)	Pashtun demographic weight in Balochistan (largest minority; now close to plurality in the north-east); ANP & jirga resolutions; counters Kalat nationalism	No process; security situation dominates
Kalat & Makran provinces	Central Baloch divisions; Makran coast (Gwadar, Kech, Panjgur, Washuk)	~5 million combined (est.)	Kalat Khanate sovereignty memory; Makran 'Gwadar without us' grievance; Baloch nationalist and religious-party positions respectively	Subsumed in 2026 restructuring proposals (Quetta/Kalat/Zhob/Makran four-way split)
Bahawalpur	Bahawalpur division (+ adjacent Cholistan belt)	~10 million (est.)	Princely-state institutional memory (merger 1959-66); grievance of patronage diversion to Multan/Lahore; PML-family politics; raised by IPP & others in 2026	Echoed only in 2026 press; no bill
Potohar	Attock, Jhelum, Chakwal, Rawalpindi & Murree belt (definition varies)	~13 million (est.)	Garrison-town under-representation; industrial-zone land acquisition grievances; PML-N intra-Punjab balancing device in 2026 reports	Press-only proposal
Gilgit-Baltistan / AJK provincial status	Existing territories	GB ~1.7 million; AJK ~4.3 million	GB: 2009 & 2018 empowerment orders give provincial-like autonomy without status; AJK assembly & all-party petitions (2023) for NFC inclusion and constitutionally protected rights	Status quo; excluded from NFC and federal lists

Populations: 2023 digital census for provinces/divisions where published; '(est.)' values are the author's aggregation of division-level census figures. Vehicles and status compiled from legislative and press record cited in refs [38][39][40][41][46][55][56].

3.1 The southern Punjab case

South Punjab is the mature end of the spectrum: its demand has an intellectual literature (the Seraiki movement of the 1960s-70s, the Saraikistan campaigns of the 1980s), precise territorial arithmetic (the three divisions; 12 districts), and a fully drafted constitutional amendment twice tested in parliament [9][39]. Its grievance base is measurable: the UNDP's 2005 human development report mapped a 'deprivation divide' running through the country's south - a belt spanning southern Punjab, interior Sindh and northern Balochistan - and district-level multidimensional poverty in the Cholistan belt still runs at two to three times the national average [11]. Its fiscal grievance is the royalty anomaly: the gas of the Sulaiman foldbelt (Sui-adjacent fields, Uch, Qadirpur's southern Punjab side) flows through a system that pays Article 158 royalties to the province in which extraction occurs, an entitlement designed before the merger of the tribal districts and before any plausible new-province map, and today the single most explosive line item in any split scenario [1][30]. The federal response since 2022 - ring-fenced development packages (the Rs581 billion package of March 2022), an additional secretariat in Multan, 33 percent of Punjab's development budget earmarked for the south, and a coordinator-minister - is the 'package model': all the fiscal transfers, none of the constitutional sovereignty [39][45][55]. Critics call it colonial-style 'backward tracts' administration; realists call it the only thing Pakistan's coalition arithmetic can pass.

3.2 The Hazara case

Hazara shows the demand's second form: *the sub-provincial identity that fits an existing administrative unit like a glove*. Hazara division - 6.19 million people across some 16,000 km2, three districts created or carved in the 1990s, its own dialect geography (Hindko), its distinct social history of land tenure, shrines and literacy patterns, and a martyr-narrative sealed on 12 April 2014 when police fire killed protesters marching for provincial status - has the strongest case as *administrative coherence*: its boundaries already exist, its bureaucracy already operates at divisional level, and its creation would dilute no other identity claim except, arguably, the all-Pashtun reading of Khyber Pakhtunkhwa that the 2024 'Pakhtunkhwa' rebranding controversy exposed [41][56]. The December 2025 unanimous KP resolution - presented by the ruling party's own MPA, invoking Article 239 expressly - marks the first time a mother provincial assembly has *asked to be diminished* as a body. Whether that consent was principled or tactical (the ANP-SPPP rivalry; the PTI's hostile silence; the army's suspicion of any border-talk while the Baloch and TTP insurgencies burn) is the question on which Hazara's fate now depends.

3.3 The Karachi and interior Sindh cases

Karachi is the *anti-Hazara*: the most concentrated economic unit in the country (roughly a quarter of GDP and the lion's share of customs revenue in a division of 17 million+) inside a province whose political economy is rural, feudal-biradari based, and controlled by the PPP; a city whose Mohajir working-class electorate has been mobilized for three decades behind, successively, MQM's ethno-territorial claim, its 2015 'Karachi as a separate administrative unit' formula, the 2024 metropolitan-governance bargain with PML-N (the federalized city proposal), and its share in the 2026 restructuring chatter [32][51][40]. The governance case is strong - no metropolitan area anywhere is more under-governed relative to its tax contribution - but the fiscal corollary cuts the other way for Sindh: a Sindh without Karachi loses its divisible-pool weight (its 24.55 percent NFC share collapses to under 11 on pro-rata population), which is precisely why any provincial-assembly consent required under Article 239(4) is unimaginable while the PPP governs Sindh. Interior Sindh's demands (the Seraiki 'Saraikistan' variant; the Sindhi-nationalist 'new Sindh' at Sukkur) articulate the same tail-end grievance as South Punjab - including the 2024-25 'Haq Dastak' (right of access) protests over canal waters and Thar coal royalties, and the recurring demand that Thar's power royalties flow to Matiarkhel and Tharparkar rather than to Karachi's provincial treasury - but remain organizationally weak [57].

3.4 The Balochistan cluster

Balochistan contains the sharpest version of the dilemma: provincial demands that are themselves in conflict. Pashtun inhabitants of the jhalwan (north-eastern sasi belt: Zhob, Loralai, Musakhel, Barkhan, part of Duki) point to census arithmetic in which Pashtuns may now constitute 30-40 percent of the province and demand their own unit ('Pakhtun Pakhtunkhwa') to end 'Baloch hegemony' in the provincial state; Baloch nationalists read any division as the latest chapter of the 1955 and 1973 annexations and counter-claim Kalat; Makran's Gwadar-area communities demand a province of their own to capture port rents; and the Hazara minority in Quetta asks only for security guarantees, not territory [8][20]. The federal state's own practice is revealing: since 2013 it has created three Baloch 'development packages' and one division-split (Zhob division again), and in 2024-25 announced the long-demanded Hazara district divisional secretariat - all without touching provincial boundaries, all treated by Baloch parties as 'divide the province, protect the centre' tactics [58]. No institutional design question in this paper is more dangerous to answer badly: in an active-insurgency environment, border redrawing is not a neutral technical act - Toft's canonical finding is that federal boundary-making in multi-ethnic regions both pacifies and hardens, depending on whether the timing follows or interrupts violence and whether criteria are fixed before claims crystallize [18].

3.5 Potohar, Bahawalpur, and the 'Punjab package' logic

The 2026 restructuring reports' most consequential feature is not any single new province but the *shape* of the package: Punjab into 3-5 units, Sindh into 2-5, KP into 4, Balochistan into 4, with Karachi and Gwadar federalized [40]. This is a 'wholesale re-regionalization' model - closer to One Unit's reversal logic than to any single movement's demand - and its advocates, including within the governing coalition, justify it precisely by that: no one *gets* a province as a favor; everyone *gets* smaller government. The Potohar and Bahawalpur proposals are the ballast in this design (each would neutralize the charge that Punjab merely concedes the south, each splits the Punjab-PPP/PML-N and MQM/PML-N voting blocs in ways that answer Senate-parity objections). The counter-charge, led by Punjab-based parties of every stripe, is that a five-way Punjab is an engine of instability - the 'new provinces as punishment' narrative that Rana Sanaullah's November 2025 '28th amendment' hint and the subsequent denials (May 2026: no indications; consultations ongoing) made impossible to retire [40][59].

4. The Constitutional and Legal Framework

4.1 Article 239 and the consensual architecture

Pakistan's Constitution contains no Article 2/3-style provision empowering Parliament to 'form new States' on petition, as India's does. Province creation is instead *implied* through the general amendment power plus the territorial clause: Article 1 names the provinces; altering what Article 1 names is an amendment under Article 239, which requires two-thirds of the total membership of each house - and, under Article 239(4), **two-thirds of the total membership of the provincial assembly of any province whose limits are altered**. No referendum is required; the President's assent is formal. The 2022 South Punjab summary was drafted exactly to this route (with incidental amendments to Articles 51, 59, 88, 106, 158, 160, 175A, 198 and 218) [39]. Two doctrinal problems are unresolved and politically charged. First, textualists (including Pakistan Bar Council submissions) argue Article 239(4) addresses *altering limits* of a province, not *substituting new federating units*, and that a dedicated creation clause should come first; the government line (and the implicit assumption of every bill since 1967) is that 239 suffices [40]. Second, the 'salient features' doctrine - the Supreme Court's doctrine since Zafar Ali Shah (2000) [76] that amendments cannot damage the Constitution's framework items (federalism among them) - casts a shadow both ways: a properly consensual re-scaling updates federalism without destroying it, while a centralizing package (e.g., federalizing Karachi and Gwadar without Sindh's and Balochistan's consent) could be reviewed - though after the Twenty-Seventh Amendment's November 2025 insertion of an ouster clause into Article 239 itself, the justiciability of even that review is a live, contested question [34][40][49].

4.2 The dependent provisions: seats, courts, services, resources

Every new province is a package amendment, and the 2022 draft bill is the best available inventory of what that means. **Representation:** NA seats must be redistributed among provinces (Article 51; the Fifteenth and Twenty-Second Delimitation practice binds apportionment to the last published census, so any new-province election rests on the 2023 - and announced 2027 - census cycle [2]); Senate composition (Article 59) must absorb new delegations without breaking the equality doctrine that the smaller provinces treat as their constitutional *droit de suite*; provincial assembly sizes (Article 106 and the Fourth Schedule) and reserved-seat formulas (Articles 51(3), 59(1)(d), 106(2)) must be re-derived - in the 2022 bill, Punjab shed 119 NA-eligible provincial seats to 252 and South Punjab gained a 119-seat house with a staggered first Senate class. **Judiciary:** a new high court means amending Article 175A's judicial commission membership (the 2022 draft added South Punjab's chief justice to the commission), the bar council statutes (Article 198), and the Supreme Court's own roster; **services:** Articles 238-242 govern transfer of officers and all-PAKISTAN cadre strength, and the Pakistan Administrative Service is already short of senior officers by a quarter - an apportionment of cadres between Lahore and Multan would be a distributional fight conducted by the federal government, not by the provinces. **Resources and water:** Article 158 (royalty on oil and gas extracted in a province) and Article 172 (inter-provincial water) cannot be left silent: a split Punjab must apportion the Indus system accord of 1991's 'Punjab' column between its successor units - an IRSA-administered process that Sindh's assembly has already resolved (2025) to treat as *res judicata*: the accord is between *founding provinces* and no internal boundary may reduce Sindh's share - which converts every upstream split into a downstream constitutional crisis [32][60]. Article 218A's CCI-approval regime for programs involving provincial foreign borrowing, and the Council's very composition (Article 153: chief ministers of each province), must absorb new members. None of this is impossible; all of it means a new province is legislated as a *constitutional convention*, not a boundary notification.

4.3 Precedents and their lessons

Four precedents discipline the imagination. (i) *1970*: Pakistan's most consequential provincial re-creation was done extra-constitutionally by LFO under martial law - a reminder that in Pakistan, maps have historically moved only where consent did not; (ii) *2010*: the 18th Amendment's -devolution was passed by consensus precisely to immunize it against reversal and court challenge, and it survived [36]; (iii) *2018*: the FATA merger paid for integration in ring-fenced federal money (Rs1,250 billion, 5-year action plan) and phased services over 15 years, proving that Pakistan can execute a sub-national territorial project when the military, the courts and the host assembly are aligned [31][35]; and (iv) *2024-25*: the 26th and 27th Amendments showed what happens when a systemically important change is passed on bare arithmetic over boycott and protest - the settlements are *in force but not accepted*, which is why the law minister's May 2026 insistence that any 28th 'will proceed only once consensus is reached, explicitly invoking the 18th's cross-party consensus as the model' is the single most important official statement in the current debate [33][34][40]. The Constitution supplies a route; the polity has yet to supply the moment.

5. Challenges

5.1 The supermajority deficit: a consensual instrument in a majoritarian age

The arithmetic is fatal so far. Article 239 demands two-thirds of *total membership* - not of those present - in the National Assembly (336), the Senate (104; 96 for provinces and ICT in the 2022 baseline), and the concerned provincial assembly (Punjab 371; KP 155; Sindh 168; Balochistan 65). No party in Pakistan's history has held two-thirds of the Punjab assembly; the PML-N-led coalition of 2024-26, formed with MQM-P and others after a contested election, governs Punjab and the centre without it; and the largest single party, PTI, treats the new-province agenda with a strategist's coolness - supporting it in its 2018 manifesto, tabling the 2019/2022 bills, then (in opposition after 2023) suspecting any Shehbaz Sharif package as either false coin or trap [39][46][61]. JUI-F's Senate objection - South Punjab would 'weaken the position of other provinces, especially Balochistan, in the upper house' - is not obstructionism; it is the doctrine working as designed [38]. The lesson is that province creation in Pakistan is not a policy but a *constitutional moment*, and the 2026 debate's fate will track national realignments more than it tracks Multan's school statistics.

5.2 The fiscal constitution: zero-sum transfers and the Article 160(3A) lock

Table 3 and Figure 1 present the fiscal terrain. Provinces receive roughly Rs7.44 trillion from the divisible pool (FY2024-25), out of total provincial revenue that is perhaps a sixth own-source at best; transfers are distributed horizontally on a 7th-NFC formula now 16 years old (Punjab 51.74, Sindh 24.55, KP 14.62, Balochistan 9.09 percent), and Article 160(3A) forbids making any province worse off [30][47][48]. A new province therefore cannot be *funded*; it can only be *carved*. On a pro-rata re-baseline, South Punjab would claim ~42/128 of Punjab's 3.70 trillion - about Rs1.22 trillion - leaving residual Punjab at Rs2.48 trillion, a 33 percent real cut to Lahore unless the federation adds money from the center's shrinking 42.5 percent; each additional unit compounds the problem in a state that has run primary deficits against IMF-programmed floors since 2019. The 2025 NFC politics make it concrete: Khyber Pakhtunkhwa's finance ministry now demands its share rise from 14.62 to 19.42 percent on account of the merged districts' security costs, Balochistan demands a formula re-weighting for sparsity (its per-capita transfer of ~Rs44,700 is already the highest), and the eleventh NFC's December 2025 session opened amid federal signals to *reduce* the pool's provincial share in exchange for taking back devolved subjects - the so-called 'centralization bargain' floated with the 27th Amendment and reported for a possible 28th [37][47][62]. The November 2025 Business Recorder analysis shows the formula's own momentum: applying 2023-census population to the existing 7th-NFC weights would cut Punjab's horizontal share by up to 4 percentage points and lift KP's by ~3 and Balochistan's by ~2 - meaning **every** re-baseline, with or without new provinces, is a fight at the razor's edge. A credible new-province design must break the zero-sum explicitly: transitional money outside the pool (the FATA action-plan model), a per-capita floor for successors of existing provinces (the 160(3A) direction reversed and generalized), and a sunset so 'transitional' does not become permanent federal patronage - the disease of the current package model.

Table 3. Provincial fiscal snapshot (FY2024-25, rupees; 2023 census)

Province	Population	Area (km2)	Assembly (general seats)	NFC transfers (Rs bn)	Share of pool	Transfers per capita (Rs)
Punjab	127.69 million	205,344	371	3,695	51.74%	~28,900
Sindh	55.70 million	140,914	168	1,856	24.55%	~33,300
Khyber Pakhtunkhwa	40.86 million	~129,000 (incl. merged districts)	155	1,221	14.62% (incl. 1% security premium)	~29,900
Balochistan	14.89 million	347,189	51 (65 general under discussion, 2024-25)	~666 (residual of 7,438 total)	9.09%	~44,700

Transfers: FY2024-25 federal budget documents as reported (NFC-award transfers, incl. ~Rs195 bn straight transfers); horizontal shares are 7th NFC Award (2009/2010, as revised). Balochistan figure is residual; per-capita values are approximate. Own-source provincial taxes are an order of magnitude smaller than transfers.

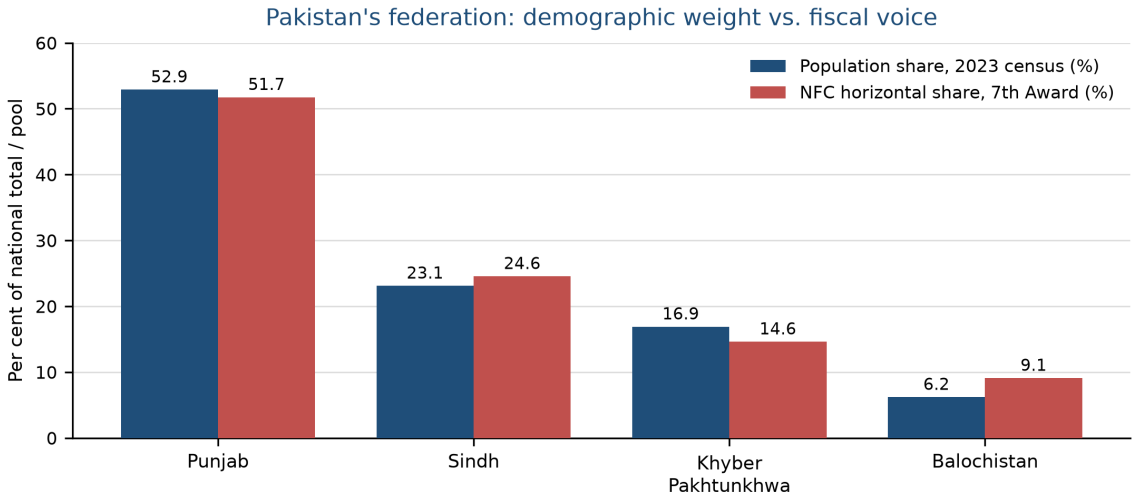


Figure 1. Population share (2023 census) versus NFC horizontal share (7th Award, FY2024-25). Balochistan already receives ~1.5x its population weight; KP, carrying the counter-terrorism premium, slightly less than it. Every new province re-opens this chart.

5.3 Water, energy and the 'res judicata' problem

Pakistan's internal boundaries were historically drawn *across* hydrology, not with it. Punjab's canal colonies - the engine of its politics - run from headworks in the north-east to tail-enders in the south-west and into Sindh; the 1991 Indus Apportionment Accord fixes provincial entitlements at the system's apex (IRSA's operational allocations bind the 'Punjab' and 'Sindh' boxes, not their future fragments); and Sindh's red line - no reallocation under any internal reorganization, restated in its assembly's 2025 resolution and in the litigation over the new GLO canal linking Taunsa to the Left Bank Outfall Drain area - means that any split of Punjab that leaves a 'South Punjab' controlling tail-end canals and cross-border return flows hands Sindh (and residual Punjab) a veto it will use [32][60][63]. The energy-royalty architecture is no less locked: Article 158's oil-and-gas royalty was designed for four provinces, its rate (Rs300 per mmbtu, unchanged since 2011) makes the fight over the Sui-Mehtar axis in a South Punjab scenario a zero-sum provincial revenue war; Gwadar's levies and CPEC profit-share flow to the federal government and the GDA, with Balochistan's assembly resolutions demanding per-container royalties - a demand that any Makran province would inherit as an unresolved crisis [1][8][64]. The federalization of Karachi or Gwadar floated in 2026 reporting would, constitutionally, be the *most* aggressive act in the package (expropriating a province's largest tax and customs base with no textual warrant under 239(4) - Sindh's and Balochistan's assemblies, one PPP-led and one coalition-dependent, would have to vote themselves poorer before Parliament could touch their coastlines) [40].

5.4 Ethnicity, security, and the boundary-hardening risk

The comparative and domestic record warns that federal boundary-making in mixed regions is not a cheap peace. Pakistan's own 1970-71 sequence - re-regionalize, count, delimit, secede - is the dark baseline [4][18]. Three present-day amplifiers matter. *First*, the demands compete in the same rooms: Baloch-Pashtun boundary questions in Duki, Musakhel and Loralai run along a real ethnic frontier; a Karachi province would wall off Pashtun and Sindhi migrants (the city's 'Mohajir majority' is already plural and shrinking); Seraiki claims to Bahawalpur division and Saraiki claims to Multan's Seraiki south are mutually exclusive in practice [9][18]. *Second*, two of the claimant regions (Balochistan, and Khyber Pakhtunkhwa along the Durand fringe) are active conflict theatres - a TTP/KCP resurgence documented in 2025-26 attacks (Babur camp in KP, May 2025; frontier corps consequences across the merged districts), and the Baloch insurgency's escalation against both state and non-Baloch 'settler-colonial' targets in Jhal Mags and Harnai (August 2024) - so that a border process would run, realistically, under security conditions that India's Punjab and Indonesia's Papua precedents associate with *securitized* rather than negotiated delimitation [20][65][66]. *Third*, the federal center's own security institutions have historically treated provincialism as dis-integration-with-extra-steps; the military command's post-27th-Amendment structural preponderance (the Chief of Defence Forces construct) makes either outcome - veto or dictated settlement - more likely than the 2018 FATA-style alignment [34][49]. Toft's generalization applies exactly: where new boundaries follow identity *cores* with pre-agreed criteria (Hazara, Makran), they can settle claims; where they slice *frontier* zones between mobilized groups (Karachi's peripheries, Duki belt), they create focal points for violence - 'borders as votes, and votes as bullets' [18].

5.5 Administrative capacity: the cost of duplicating the provincial state

A province is a fixed-cost machine. The 2022 draft bill's architecture implies, for one new unit: a 119-member assembly (with secretariat), a chief minister's cabinet (21-25 ministers), a governor's house, a high court (a 20+ judge bench roster and a registry), an advocate-general establishment, a police department (IG, 4 ranges, specialized wings), a full secretariat of 30+ departments, PDA/ED offices, and a share of ECP, NAB, FIA and auditor infrastructure; recurring salary and pensions for perhaps 25,000-40,000 transferred and new officers, and capital costs (a capital precinct - Multan/Bahawalpur/Dera Gharbi competition for it would itself need a commission). The post-2018 merged-districts experience is the best available cost estimate: even with the state *adding* capacity to territory it had administered cheaply through political agents, the Rs1,250 billion 5-year plan has run years late and was only partially spent, with police lines at ~60 percent sanctioned strength in the merged KP districts in 2023 [31][21]. Multiplying that build-out across five or nine provinces in the same PAS cadre pool (Punjab's own LG elections in 2026 were still awaiting ECP delimitation notices in part for want of officers - a warning sign that matters more than any cost sheet [52]), and doing so while the 7th NFC's per-capita tilt already flatters sparser units, converts the paper case for proximity into a delivery-capacity risk. The Indonesia evidence is that sub-national unit creation under fiscal-transfers logic produced new bureaucratic elites faster than new services; the Nigeria evidence is that it produced rent-access politics at each new state capital [25][26].

5.6 Legitimacy and procedural justice: who votes, who counts, who consents

Finally, the legitimation problem. Article 239 vests the decision in assemblies - which means in party high commands, whose intra-party democracy is the weakest institution in the system. There is no plebiscitary mechanism for territory in Pakistan's Constitution, and the one time the question was put to something like a popular process (the 2011-12 Gilgit-Baltistan reforms; the local referenda in Khyber Pakhtunkhwa's agency district mergers) the outcome was engineered by the center. Provinces created 'from above' in this way carry a democratic deficit that their first legislatures inherit; provinces denied 'from above' (Seraikistan after 1972; Hazara after 2014) carry the mirror deficit. A design that takes the vote seriously would couple assembly consent to a *consultative* mechanism (divisional conventions with reserved seats for women, peasants, workers, minorities, modeled on the Fourth Schedule's reserved-seat logic and on Canada's Clarity Act clarity-of-question discipline) and would require, as the 2022 draft implicitly did on minority seats, explicit inclusion floors so that new provinces do not become ethnic gerrymanders in three-year terms [39][67]. The women's and minorities' representation stakes are real: a new chamber doubles reserved-seat arithmetic (each assembly's women's quota is a fixed ratio, so nine provinces would mean 9x17+... - the Senate women's seats already produced Pakistan's first female deputy chairman), but only if the formula is revised with the split rather than left to first-past-the-post defaults.

5B. Comparative Assessment: What Redrawing Provinces Has Done Elsewhere

Six comparators bracket the design space (Table 4). *India* shows re-scaling by linguistic logic succeeded as pacification once - the States Reorganisation Act of 1956, following the Fazl Ali Commission, redrew India's map along language lines *inside* a firm constitutional frame (Parliament's power under Articles 2-3 requires only 'expression of view' by the affected state, and the payoffs to new states were bounded by the Finance Commission's formula) - and has since created 24 more states, most recently Telangana (2014) after a decade-long agitation with a Congress split over it, and with the 2000 trilogy (Chhattisgarh, Uttarakhand, Jharkhand) bought by the BJP-NDA to end agitation cycles; the Indian case supports the *conflict-accommodation* hypothesis, but note the enabling conditions: sequential small moves, court-and-commission dispute settlement (Punjab and Haryana's water tribunal since 1983), a Finance Commission that re-baselines every five years, and an emergency-fiscal center that new states share [23][68]. *Indonesia* after 1999 conducted the largest peaceful territorial proliferation in the developing world - from 27 to 38 provinces and from hundreds to over 400 districts within a decade, driven by the 'big-bang' autonomy laws (22/25-1999, later 32/33-2004 with explicit *viability criteria*: minimum area, population, ten-year fiscal capacity, administrative infrastructure) - and the evidence is genuinely mixed: the new units shortened service distances and in several cases (North Kalimantan's copper belt; West Papua's fragments) delivered measurable welfare gains, while elsewhere autonomy ('DOB') became an electoral-currency machine for local elites financed by the general allocation fund, prompting the 2014 national moratorium on new provinces that still holds despite the 2022 Papua split (three new provinces created for special-autonomy reasons, not viability reasons) [25][26][69]. The Papua case is also the cautionary tail: division amid armed separatism did not resolve the separatist claim, it was read as administrative siege. *Nigeria's* 37 states - created by decree from 1967 to 1996 - delivered access and deconcentrated oil rent, but the derivation formula (13 percent of mineral rent to producing states, reduced for onshore oil to 5 percent zones) re-fights the resource question at every new boundary, and state viability (own revenue below 15-20 percent of budget across the federation) now mirrors Pakistan's provinces exactly [24]. *Ethiopia* constitutionalized the opposite logic - nationality-based units with a text on secession (Article 39) - and the Sidama (2019-20) and South West Ethiopia Peoples' (2021) referenda show new units *can* be formed constitutionally, while the Tigray war (2020-22) shows regional re-scaling between hostile governments is a casus belli; the mechanism is not separable from whether the center is trusted [24][70]. *Nepal's* 2015-2020 settlement is the closest to what a Pakistani 28th Amendment would have to do: seven provinces drawn by a parliamentary constitutional committee over Madhesi and Tharu objections, then partially re-adopting identity-based names/boundaries after the 2015-16 agitation killed 44, with a fiscal-transfer schedule (equalization grants via a Constitution-specified commission) that re-cuts annually; the lesson is *process*: Nepal sequenced constitution-then-borders-then-finance-then-implementation-law, and the map still runs as an open quarrel [71]. *Kenya* demonstrates the alternative to redrawing: 47 county governments created in 2010 from existing districts, with a constitutionally fixed revenue share (15 percent of national revenue to counties, Article 202) - a service-delivery 'proxy provincehood' that produced Kenya's post-2013 growth in local health infrastructure and the infamous devolution-corruption split simultaneously, and - relevant to the 'package model' debate - is now regarded even by its fans as showing that *money and mandate matter more than altitude* [72]. The synthesis is uncomfortable for all domestic camps: re-scaling works for conflict accommodation when criteria precede claims (India 1956, Sidama); it inflates rent politics when transfers fund it unconditionally (Nigeria, Indonesia's district moratorium); and doing nothing - devolving weakly and packages-forever - entrenches the deprivation divide Pakistan already has (Kenya's county model, had it come without the 15 percent floor, would be Pakistan's current South Punjab package).

Table 4. Comparative re-scaling: mechanisms and outcomes

Country / episode	Mechanism	Fiscal design	Outcome signal
India 1956 & later	Linguistic reorganization via commission + ordinary act (Art. 2-3); sequential small units	Finance Commission 5-yearly formula; GST Council era; water tribunals for inter-state disputes	Conflict containment; new states viable when old revenue base split on criteria
Indonesia 1999-2014	Post-authoritarian 'big bang'; 38 provinces, 400+ districts; viability criteria in UU 32/2004; 2014 moratorium	DAU general allocation fund (transfers pay for new units), special autonomy for Papua/Aceh	Service distance reduced; elite capture prominent; moratorium = implicit failure admit
Nigeria 1967-1996	State creation by decree 12->36->37; oil-derivation politics	13% mineral derivation; federation account sharing by formula	Access improved; unit viability declining; borders re-fight rent each time
Ethiopia 1995-2021	Nationality regions with Art. 39 exit right; referenda (Sidama 2019, SWE 2021)	Block grants + revenue sharing via House of Federation	Constitutional creation possible; wartime referenda polarize; secession right untested to stability

Country / episode	Mechanism	Fiscal design	Outcome signal
Nepal 2015-20	7 provinces by parliamentary committee; identity agitation forced re-draw	Constitutional equalization grants via NC; provincial fiscal capacity minimal	Process-first sequencing worked to hold union; map still contested
Kenya 2010	47 counties from existing districts (no new map, new level)	Art. 202: 15% national revenue to counties, formula by statute	Proximity dividend real; capture risk real; shows devolution can substitute for re-scaling

Sources: Brass [23]; Clapham [24]; Evers & Rammohan [25]; Suberu [27]; Lawoti [71]; Faguet [72]; consolidated in the references.

6. Prospects and Opportunities

6.1 Service delivery across the deprivation divide

The strongest case for new provinces is not ethnic but statistical. The UNDP's canonical mapping of Pakistan's human development found a contiguous 'deprivation divide' running through the country's south and west - southern Punjab, interior Sindh, the merged districts, and all but the Quetta-Kalat corridor of Balochistan - in which poverty, child mortality and out-of-school rates resembled the region's poorer neighbors more than they resembled Lahore or Islamabad [11]; PSLM multidimensional poverty mapping has since placed several southern Punjab and south Sindhi districts among the ten worst of all 160+ districts [73]. The distance between a Multan tehsil and a Lahore secretariat is the same as between Berlin and Rome; a resident of Rajanpur reaches the deputy commissioner's office, a district sessions judge and a teaching hospital in hours that a resident of Gulberg also reaches in hours - but the *budgetary* distance is enormous, because discretionary allocations cluster where capacities and political gravity cluster. The mover of the 2024 Senate bill reduced the claim to one statistic: of Punjab's 50,112 government schools, 13,446 are in the south - a share below its share of pupils, students and infants [38]. Comparative evidence says a smaller, nearer provincial state reduces that bias: Faguet's Bolivia finding - that decentralization produced a systematic reallocation of public investment toward poor provinces' health and education within a few years - is the best quasi-experimental analogue available, and the Indonesia district-creation literature shows the same redistributive reflex (with, equally, the same capture risk) [17][16][25]. Pakistan's own quasi-experiment - the ring-fenced 33 percent of provincial PSDP for South Punjab, the Rs581 billion federal package, the additional secretariat at Multan - reports a doubling of sanctioned health and education budget lines in the south's districts since 2018 [42][45]. If ring-fencing *without* sovereignty moves money this much, sovereignty plausibly moves it more - and, once devolved, moves it through formula rather than through the goodwill of the chief minister who announced it.

6.2 Conflict accommodation and the recognition dividend

Federalism theory supplies the second and most underweighted argument. Riker's classic formulation - federalism as a bargain in which constituent units trade centralization of some functions for autonomy over others - implies that when a national community demands the status of a contracting party, refusing it is not neutral conservatism but an renegotiation of the federation's terms [13]; Elazar's 'compact' tradition adds that federations survive by renewing consent across generations [12]. Kymlicka's accommodation thesis and Toft's boundary studies converge on the same practical point: institutionally recognized self-rule for geographically concentrated groups - where criteria are rules-based and timing precedes escalation - is associated with *lower* separatist violence, whereas deferred recognition is associated with movement radicalization [19][18]. Pakistan's history is a case study: the 1970 re-creation of four provinces and the 1973 autonomy package de-escalated the Sindhi, Seraiki and Baloch movements for a decade (and the decade's reversal - dismissal of governments, One-Unit nostalgia in Punjab's administration - re-escalated them) [4][6][8]; the 18th Amendment is credited with a similar, ongoing dividend for Sindhi and Baloch cultural claims [22][10]. A *properly sequenced* province-creation program would extend that dividend: Hazara's unanimous host-assembly consent shows the consensual route is not theoretical [41]; the FATA merger shows the state can integrate a territory and its citizens' claims at the same time [35][31]; and a South Punjab created under formula, not patronage, would answer the Baloch-Pashtun 'recognition competition' by giving the state a credible template of *fair procedure* [18][20]. This is the difference between re-scaling as demobilization (India 1956, Sidama) and re-scaling as siege (Moradabad-to-Papua variants) - criteria first, claims later [23][26].

6.3 Economic reconfiguration: growth poles, ports and the discipline question

The economic-federalism school's original proposal - Mumtaz Ahmad and Zaidi's 'economic federation' of some 45 fiscal communities organized around viability rather than ethnicity, with provinces as competitors for investment rather than claimants on the pool - remains the most serious structural answer to the size problem and remains untried [10][11]. Province-scale units could each run an investment desk, an urban authority, a port or an energy corridor policy that Punjab's 205,000 km2 bureaucracy currently cannot: a Makran province's entire administrative class would be Gwadar; a South Punjab's would be energy-agro industry (the Bahawalpur solar complex, the DG Khan-Industries belt, and gas-linked fertilizer chains are already there); a Karachi province would confront the city's parastatal fragmentation directly rather than through a Sindh assembly whose rural majorities vote against urban property-tax reform each time it is proposed. Qian and Weingast's market-preserving federalism gives the theoretical test - hard budget constraints, factor mobility, no bailouts [15] - and Pakistan flunks it today: provinces are transfer-dependents, not revenue-raisers, and the real constraint on Karachi's or Gwadar's economics is not the size of the province that administers them but the absence of any fiscal discipline at any level [14][16]. The realistic prospect is therefore the 'second-best' one used in India's post-1956 settlements and Indonesia's viability law: new units enter with *pre-committed fiscal duties* (own-revenue floors, assembly-size caps, borrowing rules via Article 218A's CCI approval [1]), and the federation uses the split as leverage to complete the revenue-devolution that the 7th NFC left half-done (provincial sales taxes on services now finance single-digit shares; combined own-source collection runs at roughly an eighth of transfers) [30][47][48].

6.4 Climate resilience and the tyranny of distance

The 2022 super-floods - one-third of the country under water, 1,739 dead, 8.16 million displaced, US$30 billion in losses and US$16.3 billion in identified reconstruction needs - were, administratively, a disaster of vertical distance: PDNAs, provincial disaster management authorities and deputy commissioners coordinated through capitals that were themselves underwater or in emergency, with relief convoys routed from Lahore and Karachi to Dera Ismail Khan and Dadu [44]. A federal structure in which a Dera Ghazi Khan chief secretary can requisition provincial police, irrigation and health machinery without a 350-km conversation would have moved faster in the first 72 hours - the interval that drives mortality in both floods and heatwaves (southern Punjab's 2022-24 heatwave mortality and the Indus belts' crop-loss pattern are the same proximity problem [73]). Conversely, the India smog litigation - Punjab and Haryana blaming each other across the border the Supreme Court itself adjudicates each October - warns that *new borders in shared systems (airsheds, basins, aquifers) must be born with joint-management bodies*, or the split manufactures the next crisis. The design inference is precise: climate-motivated province creation must come with division-level (or new-province-level) emergency operational authority over provincial police, irrigation and health, and with basin commissions sized to the new map - not another layer of 'coordination' letters between chief secretaries.

6.5 The modernization dividend: the state's administrative stack is finally ready

The prosaic point deserves emphasis because it changes the 1970 equation: the technical preconditions for clean province creation now exist, and did not in 1955, 1970 or 2000. Pakistan has (i) a digital, geolocated census (2023) whose division- and tehsil-level data make 'workable' population and deprivation thresholds auditable rather than adjectives [2][3], with a 2027-cycle census on statute; (ii) a functioning Election Commission that is currently conducting delimitation for *three* concurrent electoral calendars and could run a first new-province election on the 2028-29 cycle with existing capacity [54]; (iii) NADRA and GIS-based land-record systems (Punjab's LRMIS digitized ~10.5 million record-of-rights entries by 2023) that make the asset-division, tenancy-protection and canal-ownership audits a province split requires at least technically decidable [75]; and (iv) a Supreme Court-mandated precedent of *commission-first* territorial reform from the FATA process [31]. The 'formulation' question of this paper's title is thus answerable with institutional detail rather than aspiration - which is precisely why half-measures (arbitrary splits, packages-as-permanent-policy, division-by-decree) are now *inexcusable* rather than merely risky.

6.6 A 'third stage' of autonomy

Conceptually, the new-province debate is Pakistan's third round of autonomy bargaining: 1972-73 bargained provincial existence; 2010-18 bargained provincial powers; the 2024-26 round bargains *provincial scale*. Its prospects are best stated as a shift of the burden of proof: after a decade in which every province's per-capita transfers diverged by design (Fig. 1) while service outcomes did not converge, the federation must either make the current map's inequities administratively correctable (via 140A and formula politics) or accept that correction has a ceiling and offer new units as the instrument to break it [47][10]. Either exit is honest; the 'package forever' middle is not, because it taxes everyone at the current rate while promising South Punjab, Hazara and Karachi the *forms* of representation without the *substance* of consent - the precise combination that has historically produced the most violent outcomes.

7. Design Principles and Policy Options

This section translates the challenge and prospect analysis into a design agenda a 28th-style amendment (or any future tranche) could adopt. The organizing rule is *rules before reals*: criteria, formulae and settlement machinery fixed ex ante, then applied to specific cases, in the sequence Indonesia's and India's settlements used and Pakistan's 2022 draft bill lacked [26][23][39].

(1) Sequence the ladder; start at the rung that is already constitutional. Article 140A is now self-executing in intent: ECP-conducted local-government elections within the constitutionally contemplated window, with hearings against assemblies that default (the ECP's 2026 pressure on Punjab, KP and the capital is the mechanism finding its teeth) [33][52][53][54]. No new province before every existing province has completed two local-government cycles with devolved functions and provincial finance commissions; failure of the weakest tier of government is the strongest argument against proliferating the strongest ones. The intermediate rung - directly elected divisional councils with delegated provincial functions (schools, PHCs, tehsil revenue, divisional police oversight) - converts the "province" debate into a devolution competition whose results are measurable within one term.

(2) One consensual amending convention, not serial arithmetic. If province creation proceeds, it proceeds as a single negotiated package under the 18th Amendment's precedent - all-party conference, published technical base data, two-thirds in both houses and the affected assemblies - not as a government bill passed against a boycotting opposition as the 26th and 27th Amendments were [33][34][40]. The package should include its own *new-units clause* (a dedicated Article 239A or a schedule), ending the textualist quarrel over whether 'altering limits' covers 'creating provinces,' with the affected-assembly supermajority retained [40][1].

(3) Pre-committed viability criteria (the Indonesia model, adapted). A statutory test - area, population, ten-year fiscal self-sufficiency prospect, administrative capacity, and a national-integrity and security clause - applied by an independent boundary commission before any unit is named [26]. Criteria should *not* include ethnic-core tests as disqualifiers (that is Ethiopia's road [24][70]) but should include Toft's demographic-coherence and mixed-district rules (a unit may not exceed an agreed share of any other identity's demographic core) [18].

(4) Break the zero-sum, honestly and temporarily. Transitional funding flows *from the federation, outside the divisible pool*, on the FATA action-plan model - sunset at 10-15 years, audited annually, and not counted in the receiving units' NFC baselines [31]; the Article 160(3A) non-regression floor is generalized into a *residual-province floor* (a successor of a split province cannot be pushed below its pre-split per-capita real transfer for the transition) [1][30]; and every new unit enters with assembly-size caps, a civil-service absorption formula (no net cadre increase above a fixed fraction), and a borrowing rule policed by the CCI under Article 218A [1][50]. A 'one-time settlement' - the phrase Pakistan used for the 1947 and Kalat questions - is the wrong precedent for assets and the right one for water: a standing Inter-Provincial Settlement Commission (retired-chief-justice chaired, expert-secretariat backed) adjudicates the division of canal entitlements, Sui-system royalties (Art. 158), assets, liabilities and pensions *before* consent votes, with the 1991 Indus accord's provincial entitlements declared inviolable by intra-province reorganization - so Sindh never litigates a split it did not choose [32][60][63][64].

(5) Re-engineer the Senate and CCI for more than four members. Options, in ascending cost: (a) enlarge the Senate as the 2022 bill drafted (96 to 119; staggered classes), keeping *unit parity* - every province equal, new units small - which preserves the doctrine smaller provinces will not trade [39][38]; (b) a two-tier upper house on Swiss lines: 2 senators per founding province, 1 per successor unit and 1 per union territory, so the aggregate of successors equals the mother unit (a 'half-canton' device); (c) CCI reform - chief minister of every unit, with qualified-majority plus *affected-province veto* on water, energy and census-linked matters, and the NFC floor made formula-bound rather than negotiation-bound [1][47][48]. Whatever is chosen, the Senate must not become a chamber where the nine largest

identities outvote the four smallest.

(6) Make representation arithmetic transparent and automatic. NA and assembly seats for any new unit derive from the current census and the existing apportionment rules; first elections coincide with the next general cycle to avoid expensive by-election logistics [2][51]; reserved-seat floors for women and minorities *rise* with unit count (the 2022 bill's four-to-five minority bump is a template) [39]; and the ECP gains a member from each new unit, as drafted [39].

(7) Prioritize cases with clean borders and consenting hosts. The shortlist that satisfies (3)-(5) *today* is short: Hazara (existing division; unanimous host resolution [41]) and South Punjab (existing three divisions, drafted bill, host-assembly resolution history [39][38]) - sequenced one after the other, not simultaneously. Karachi enters as a *metropolitan settlement* under the 140A architecture with fiscal powers (property tax harmonization, city-manager with police liaison), revisited as a province only if Sindh's assembly consents [32][51]; Balochistan units (Kalat, Makran, the Pashtun belt) are held for a *post-settlement* constitutional process that follows the missing-persons and political-prisoner agenda - a boundary commission without a cease-fire framework would reproduce Pakistan's worst 1970s memory [8][43][20]. Potohar and Bahawalpur join the shortlist only if a criteria law pre-commits to multiple Punjab successors in the same tranche, breaking the 'punishment split' optics [40][55].

(8) Institutionalize the package model's good parts. Where provinces are not created, the ring-fenced package + additional-secretariat machinery (33 percent of PSDP, Multan secretariat, ECP-ready divisional offices) should be written into statute with KPIs, sunsets and audit - not left as the chief minister's announcement of the month [42][45][74]. Done this way, the 'package' becomes Phase 0 of a ladder rather than a permanent substitute for consent; done the other way, it becomes the next grievance - and the cycle renews itself, as it has every decade since Chester told Ayub, in 1964, that the map had to move [5].

8. Conclusion

The formulation of new provinces in Pakistan is neither the constitutional dead end its critics in Parliament claim nor the governance free lunch its claimants promise. It is a *deliberately hard consensus instrument* - Article 239 plus the affected-assembly veto of clause (4) - that Pakistan's founders designed to make territorial change slow precisely so that it would be legitimate, and that the polity has used, when it has used it at all, with a record of genuine success (1970 re-regionalization within the eventual 1973 settlement; the 18th Amendment; the 2018 FATA merger) and genuine failure (One Unit imposed; devolution imposed; packages substituted indefinitely for consent) [1][4][36]. The challenges of the 2020s are real and partly decisive: no current majority reaches two-thirds of three assemblies across four parties in two governments; the divisible pool is fixed and its floor constitutional; water and royalties are settled between provinces and would be unsettled by splitting them; and two claimant regions are conflict theatres where border-making has historically multiplied violence rather than dividing it [18][20][32][60].

The prospects, nonetheless, are now historically material in a way they were not before 2023: a digital census and an empowered election machinery make the arithmetic auditable; the 18th Amendment's devolution makes a new province a real prize for its citizens rather than merely a real office for its elites; and the comparative record shows that re-scaling pacifies when it is rule-bound, sequenced and funded from outside the zero-sum, and radicalizes when it is not [23][25][26][70][71]. The design agenda - local-government compliance first; one consensual amending convention; pre-committed viability criteria; a generalization of the Article 160(3A) floor plus transitional federal money; Senate and CCI re-engineering; settlement commissions for canals, gas and cadres; and a shortlist of cases (Hazara first, then South Punjab; Karachi as metropolitan settlement; Balochistan last and only with a political settlement) - is not a recipe for creating provinces quickly. It is the only recorded way to create them *safely*, and thus the only way their benefits - shorter chains between taxpayers and treasuries, formula rather than favour in allocation, recognition without secession - are likely to survive the first electoral cycle.

A final qualification. This paper has argued that the deepest problem of Pakistan's federation is not the number of its provinces but the *currency* of their relationship: transfers without taxation, elections without tiers, consent by arithmetic rather than architecture. On current trajectory, a 28th Amendment - if it comes - will be a bargaining table at which small fixes to large problems are traded for coalition votes, and new provinces will be born half-designed, like the merged districts were, but without their one virtue: a funded plan. The alternative available to Pakistan's politics in 2026-29 is to make the provincial question *legible* - criteria, commissions, census, cadence - so that when the moment of consensus comes, as it came in 1973 and in 2010, the state does not have to improvise with a map. Pakistan has survived every provincial reorganization of its first seventy-five years. It will survive this one only if, for the first time, the reorganization is *by design*. The formulation of new provinces is, in the end, the formulation of the state's willingness to

be fair in public, in advance, when it hurts least. The evidence reviewed here suggests Pakistan has finally built the instruments to do so - and has not yet built the politics.

Table 5. Summary of principal findings

Dimension	Verdict	Key evidence
Legal route	Exists; demanding by design; textual dispute over 'creation' resolvable only by convention or explicit clause	Art. 239 + 239(4); 2022 bill drafted to route; PBC objection; salient-features doctrine [1][39][40][76]
Political feasibility	Near zero under current arithmetic; non-zero only as 18th-style consensus moment	No two-thirds in Punjab assembly or coalition; Senate panel split; PTI ambivalence [38][40][61]
Fiscal	Zero-sum locked; any funding plan must be exogenous and transitional	7th NFC 16 yrs old; 160(3A) floor; Dec-2025 NFC politics; Rs7.44tn transfers vs ~1/8 own-source [30][37][47][48]
Water & resources	Binding constraint; splits require pre-settlement	1991 accord as red line; GLO dispute; Art. 158 royalty; Gwadar levies [32][60][63][64]
Ethnic & security	Double-edged: coherent boundaries pacify, frontier splits radicalize	Toft; Baloch-Pashtun jhalwan belt; Karachi demographics; insurgency context [18][20]
Administrative	Cost and cadre scarcity real but manageable at 1-2 units/decade	2022 bill's apparatus inventory; FATA build-out delays; PAS vacancies [39][31]
Service-delivery prospects	Moderately positive; formula + proximity beat package + announcement	Faguet Bolivia; UNDP 2005 divide; South Punjab ring-fencing outcomes [11][17][42][45]
Conflict-accommodation prospects	Positive iff criteria-first, sequenced; negative if punitive/panic-driven	India 1956, Sidama vs. Papua, Sri Lanka-type warns [23][26][70]

Each row's full argument appears in the corresponding section (4, 5.1-5.6, 5B, 6, 7).

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